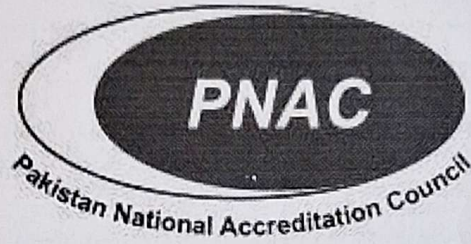


# PNAC



PAKISTAN  
NATIONAL  
ACCREDITATION  
COUNCIL

Agreement between PNAC and  
Laboratory

## Contents

|     |                                                                          |    |
|-----|--------------------------------------------------------------------------|----|
| 1.  | Introduction.....                                                        | 3  |
| 2.  | Accreditation of a Laboratory.....                                       | 3  |
| 3.  | Conditions to be Met by an Accredited Laboratory.....                    | 6  |
| 4.  | Obligation of Accreditation Body .....                                   | 9  |
| 5.  | Appeals.....                                                             | 10 |
| 6.  | Complaints.....                                                          | 10 |
| 7.  | Assignment.....                                                          | 10 |
| 8.  | Liability.....                                                           | 10 |
| 9.  | Force Majeure.....                                                       | 11 |
| 10. | Indemnity.....                                                           | 11 |
| 11. | Conditions Governing the use of the Accreditation Mark by the Laboratory | 12 |
| 12. | Law .....                                                                | 12 |
| 13. | Arbitration.....                                                         | 12 |
| 14. | Termination.....                                                         | 12 |
| 15. | The Parties of the Agreement.....                                        | 13 |

## AGREEMENT FOR THE OPERATION OF A LABORATORY

This agreement is made on the date shown at section 16 below between  
(1) the Pakistan National Accreditation Council and (2) the applicant/accredited  
Laboratory named at section 16.

### 1. INTRODUCTION

1.1 The Pakistan National Accreditation Council (herein referred to as PNAC) is an organization operating under a PNAC Parliament Act 2017 and is recognized as the sole national body for the accreditation of Conformity Assessment Bodies (CABs) in Pakistan.

1.2 This Agreement sets out the relationship between PNAC and laboratories and the standards and conditions to be met by an accredited laboratory in the operation of its accredited scope.

1.2 Both PNAC and the accredited laboratory are expected to abide by both the spirit and intention of this Agreement and with the requirements set out in this document.

### 2. ACCREDITATION OF A LABORATORY

2.1 Laboratories are accredited against the relevant accreditation criteria International standard ISO/IEC 17025 or ISO 15189 and PNAC policies and guidelines for competence. PNAC policies and guidance documents are issued from time to time to amplify or explain issues of relevance to accredited laboratories. The criteria laid-out in ISO/IEC 17025 or ISO 15189 will normally be taken as the basis for assessing the competence of laboratory, but additional or alternative criteria, which may include measurement audit or proficiency testing, may be prescribed at the discretion of PNAC.

2.2 PNAC will apply its accreditation criteria consistently and will provide

suitably qualified personnel for assessment of the applicant laboratory either by direct deployment of PNAC's own staff or by sub-contract to PNAC approved assessors. PNAC will determine the appropriate assessment team for each laboratory assessment. The applicant laboratory will be given notification of the assessment team in advance and the laboratory may raise objections to individual members on reasonable grounds.

- 2.3 A laboratory applying for accreditation will undergo assessment by PNAC to enable PNAC's assessors to determine the competence of the laboratory and its conformity with ISO/IEC 17025 or ISO 15189 against which accreditation is sought. If the non-conformities (NCs) identified during the full assessment are not closed within the specified period of three months, the laboratory has to undergo a full assessment or an extraordinary assessment as decided by Program Manager concerned. If the NCs are not closed within five months the lab has to re-apply as a new applicant.
- 2.4 After closing of all non-conformities accreditation is granted, an accreditation certificate will be issued to the laboratory.
- 2.5 For labs when NCs were closed within the three months period the first surveillance will be conducted within 12 months from the date of the full assessment. For labs where NCs were closed after three months the first surveillance will be conducted as recommended by reviewer (s) or Decision maker and as early as possible.
- 2.6 An accreditation certificate is granted for a defined period on the condition that the accredited laboratory:
- (a) Complies with the terms of this Agreement
  - (b) Complies with the conditions of accreditation G-02/04
  - (c) Demonstrates continuing conformity with ISO/IEC 17025 or ISO 15189 and with PNAC regulations (the requirements/policies).

- (d) All nonconformities are satisfactorily closed.
  - (e) Demonstrates continuing competence within the scope of its accreditation
  - (f) Give such undertakings as PNAC may reasonably require
  - (g) Pay such fees as are due to PNAC
- 2.7 The scope of accreditation is set out in the scope attached to the accreditation certificate, which PNAC grants to each accredited lab. The current/valid scope will also be available on PNAC website.
- 2.8 PNAC will indicate how continuing conformity with the requirements will be monitored to ensure that the accredited laboratory can maintain its accredited status. The frequency with which each lab is subject to surveillance and re-assessment will be determined by PNAC with reference to the scope of the accredited activity of the laboratory. PNAC reserves the right to carry out additional or unscheduled surveillance or re-assessment visits at intervals other than those predetermined, as it may reasonably require. A full re-assessment will be undertaken by PNAC usually about every fourth year, after completing a three year accreditation cycle.
- 2.9 If an accredited laboratory fails to comply with the terms of this Agreement, or any undertakings given to PNAC, the relevant accreditation criteria or the conditions for the use of the Accreditation Mark, PNAC may suspend, withdraw or reduce the scope of an accreditation; impose a moratorium on the issue of accredited certificates or extensions to scope; require re-assessment; or impose other sanctions as appropriate.
- 2.10 Additionally, PNAC reserves the right to withdraw or suspend accreditation as mentioned in G-02/02 and G-02/04:-
- (a) If a PNAC accredited laboratory, being a company, enters into liquidation, whether compulsory or voluntary (but not necessarily including liquidation for the purposes of reconstruction), or has a receiver for its business appointed;

- (b) If there is a complaint against the lab with PNAC or at open public, which may lead disrepute of PNAC
- (c) If a laboratory fails in any respect to comply with the law of the land;
- (d) If an accredited laboratory fails to pay any fees due to PNAC;
- (e) If an accredited laboratory misuse PNAC logo and Accreditation Mark (G-02/02);
- (f) If a lab fails to take immediate corrective actions along with root cause analysis within specified time of six weeks after surveillance.

- 2.11 PNAC fees are reviewed annually and are subject to alteration. PNAC normally expects that this review will be completed by 31 December in any year and published for implementation with effect from the start of the next PNAC financial year (i.e. from 1 July in any year). Accredited laboratories will be provided with an annual financial quotation for PNAC's estimated charges for the following year based on PNAC's assessment of the appropriate level of monitoring for that laboratory's scope. The quotation will not be exceeded unless there has been an agreed increase in the work to be carried out or there is some justification to increase in the light of unforeseen changes in the accredited lab's activities/scope.
- 2.12 All information gained by PNAC and its staff in PNAC's direct dealing with accredited laboratories other than information already in the public domain will be treated as confidential and will not, subject to the law of the land, be divulged without prior written consent of the accredited laboratories.
- 2.13 Accreditation should not be regarded as, in any way, changing the contractual responsibilities between the accredited laboratories and its client. While accreditation is the indication of the integrity and competence of the accredited laboratories, it cannot be taken to constitute an undertaking by PNAC that the accredited laboratories will maintain a particular level of performance during the period of accreditation.
- 2.14 PNAC has the right to reject the application, terminate the assessment process,

suspend or withdrawn the accreditation in case of proven evidence of fraudulent behaviour, falsification of information or deliberate violation of accreditation requirements by the CAB.

**3. CONDITIONS TO BE MET BY THE ACCREDITED LAB**

**3.1 The accredited laboratories shall:**

- (a) offer PNAC and its representatives such reasonable access and cooperation as necessary to enable PNAC to monitor conformity with this Agreement and ISO/IEC 17025 or ISO 15189. The accredited laboratories shall also use reasonable endeavors to provide access to conformity assessment body personnel, locations, equipment, information, documents and records as necessary to verify fulfilment of requirements for accreditation.
- (b) commit to fulfil continually the requirements for accreditation for the scope for which accreditation is sought or granted and to commit to provide evidence of fulfilment. This includes agreement to adapt to changes in the requirements for accreditation.
- (c) assist PNAC in the investigation and resolution of any accreditation-related complaints.
- (d) Undertake any reasonable check calibrations or tests, which may include measurement audits and proficiency testing, to enable PNAC verify the calibration or testing capability of the laboratory.
- (e) Prepare, pack and dispatch calibration items, test pieces, samples or other items needed by PNAC for verification purposes.
- (f) Permit scrutiny by PNAC and its representatives of calibration certificates, test reports, test certificates and other records relevant to accredited activities
- (g) Permit scrutiny by PNAC and its representatives of the results of the laboratory's own internal quality audits, measurement audits or proficiency tests.

**3.2 The accredited laboratories shall:**

- (a) at all times comply with the terms of this Agreement, with the requirements of ISO/IEC 17025 or ISO 15189, and with PNAC criteria of competence.
- (b) at all times comply with G-02/02, G-02/04 and all the policies of PNAC for conformity assessment bodies are available on PNAC website [www.pnac.gov.pk](http://www.pnac.gov.pk)
- (c) only claim that it is accredited in respect of those activities which are the subject of the scope of accreditation attached to the accreditation certificate issued to it by PNAC from time to time and which are carried out in accordance with this Agreement and the requirements of ISO/IEC 17025 or ISO 15189.
- (d) Use the Pakistan National Accreditation Council (PNAC) Mark only on those certificates and reports covering testing, which fall within its accredited scope. Certificates of calibration may not contain results of non-accredited calibration. If test reports contain results of non-accredited testing in addition to results from testing within the scope of accreditation, those not covered by the scope of accreditation shall be clearly shown as such. The accredited laboratories shall only use the appropriate mark or make reference to PNAC accreditation in the manner prescribed by PNAC;
- (e) maintain impartiality and integrity with its clients;
- (f) pay to PNAC any outstanding fees prior to accreditation and pay promptly all fees due to PNAC, in accordance with the Fee Schedule issued by PNAC from time to time;
- (g) not use its accreditation in such a manner as to bring accreditation into disrepute, and take appropriate steps to correct any statement which PNAC considers to be misleading;
- (h) upon the withdrawal of accreditation, however determined, discontinue forthwith the use of any reference to accreditation, withdraw all advertising matter which contains any reference thereto, return the certificate of accreditation, discontinue issue of accredited certificates, and take such action with existing clients holding accredited certificates as PNAC may require

- (i) claim that it is accredited only in respect of calibration or testing services for which it has been granted accreditation and which are carried out in accordance with this agreement and the criteria of competence prescribed by PNAC,
  - (j) ensure that accredited certification shall not be used by itself or its clients for promotional or publicity purposes in any way that PNAC considers to be misleading, and take such immediate steps as PNAC may require to correct any such misleading use (Guideline on the use of logo as accreditation mark G-02/02).
- 3.3 For promotional purpose, the accredited laboratories may use in documents brochures or advertising media, without variation, the phrases “an accredited laboratory listed under PNAC certification number .....” and “ listed in the PNAC Directory of accredited laboratories under certification number.....”
- 3.4 The accredited laboratories shall inform PNAC of any changes which it is planning and which bear on the accredited laboratory’s conformity with this agreement and ISO/IEC 17025 or ISO 15189 or otherwise affecting, or potentially affecting, the accredited laboratory's capability or scope of accreditation, as soon as possible, or, in any event, at least fourteen days prior to implementing any such change.
- 3.5 The accredited laboratories shall inform PNAC as to planned changes in its :-
- a) ownership/top management,
  - b) legal, commercial or organizational status,
  - c) organization and management, e.g. key managerial staff,
  - d) policies or procedures including its documented management system
  - e) staff, equipment, methods facilities, working environment or other resources, where significant
  - f) location of its premises
  - g) the laboratory's authorized signatories,
  - h) and also inform PNAC of other such matters that may affect or potentially affect the accredited laboratory's capability, or scope of

accredited activities, or conformity with the requirements in this agreement.

- 3.6 An accredited laboratory wishing to relinquish its PNAC accreditation shall give at least ninety days' written notice to PNAC of its intent, stating the arrangements made for protection of clients holding accredited certificates and reports settlement of PNAC fees, and the return of the certificate of accreditation.
- 3.7 Financial arrangements between an accredited body and its client are not the responsibility of, and are not subject to the control of, PNAC. However, information contained therein may be subject to review by PNAC.
4. OBLIGATIONS OF THE ACCREDITATION BODY
- 4.1 The PNAC will give due notice to the accredited labs of any proposed major changes/requirements such as fee relating to this Agreement. These changes shall be mutually agreed between PNAC and the accredited laboratories, which shall be given such reasonable time as is necessary to make any adjustments to its procedures. The accredited laboratories shall notify PNAC when such adjustments have been completed.
- 4.2 Any notice or other communication given or sent by PNAC to an accredited laboratory in connection with, or under, this Agreement, shall be deemed to be duly given or sent if dispatched by post to the address of the accredited laboratories last known to PNAC and shall be deemed to be given at the time when the same would have been delivered in the ordinary course of post.
- 4.3 PNAC shall make publicly available information about the current status of the accreditations that it has granted to CABs on its website, which will be updated regularly. The information shall include name and address of each CAB, date of granting accreditation and expiry dates, scopes of accreditation.
- 4.4 PNAC shall provide guidelines/information on traceability for the scope for

which accreditation is granted.

4.5 PNAC Shall inform its CABs about the international arrangements, once signed

**5. APPEALS**

5.1 Appeals will be considered only against an accreditation decision made by PNAC. An accreditation decision is a decision by PNAC to grant, curtail, suspend or withdraw accreditation or when PNAC grants, or denies, an extension to scope. Such a decision by PNAC shall stand pending for the period before the closure of the appeal.

5.2 Appeals in writing against a decision made by PNAC will be processed in accordance with the PNAC Appeals Procedure. The Appeals procedure is available on request.

**6. COMPLAINTS**

6.1 Any complaint against PNAC should be addressed to the Director General, PNAC in writing.

6.2 Any complaint against accredited laboratories should be made to the Program Manager in writing.

**7. ASSIGNMENT**

Except as otherwise agreed by the parties in writing, accreditation shall not be assigned to any other organization.

**8. LIABILITY**

No representation, promise or warranty, expressed or implied, is or will be made or given as to the accuracy or completeness of any information, review, assessment or advice supplied, made or given by PNAC (or any of its PMs / directors, employees or sub-contractor) in the course of providing services pursuant to this agreement and no director, program manager, employee or sub-contractor of PNAC is authorized (nor shall any such person be deemed to have been given any such authority), to make or give any such representation, promise or warranty, and any such representation, promise or warranty purported to be so made or given shall not

be relied upon by the accredited laboratories.

9. **FORCE MAJEURE**

No failure or omission by either party to carry out or observe any of the stipulations, conditions or warranties to be performed shall give rise to any claim against such party or deemed to be a breach of contract to the extent that such failure or omission rises from causes reasonably beyond the control of such party.

10. **INDEMNITY**

The accredited laboratory undertakes to indemnify PNAC against any losses suffered by or claims made against PNAC as a result of misuse by the accredited laboratory of the license or mark granted by PNAC as a result of any breach by the accredited laboratory of the terms of this agreement.

11. **CONDITIONS GOVERNING THE USE OF THE ACCREDITATION MARK BY THE LABORATORY**

The accredited lab will be provided with guidance (G-02/02) governing the use of the Accreditation Mark and hereby agrees to comply with them and to take all reasonable steps to ensure that compliance with these conditions is enforced amongst its customers.

12. **LAW**

This agreement shall in all respects be construed and operate as an Agreement made in Pakistan and in conformity with Pakistani Law and the construction and validity shall be governed by the Laws of Pakistan.

13. **ARBITRATION**

All disputes, differences or questions at any time arising between the parties as to the construction of this agreement or as to any matter or thing arising out of this agreement or in any way connected therewith (which cannot be settled by mutual agreement) shall be referred to a single arbitrator who shall be agreed between the parties or, failing such agreement, who shall be appointed at the request of either party by the Secretary, Ministry of Science & Technology for the time being in accordance

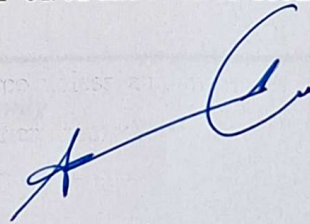
with prevailing laws of the Government of Pakistan. The arbitration shall be held in the City of Islamabad and shall be in accordance with the prevailing laws of Government of Pakistan and any statutory modification or re-enactment thereof for the time being in force.

**14. TERMINATION**

These arrangements shall continue in force unless and until terminated; by either party upon 90 days' written notice to the other; immediately by decision of the PNAC Director General, in accordance with PNAC procedures.

At the date of termination, the laboratory's accreditation shall immediately cease to be valid but the accredited laboratories will remain bound by the relevant conditions of this agreement.

15. I have also read, understood and agree with F-01/02 and F-01/03 documents of PNAC.



16. THE PARTIES OF THE AGREEMENT

*For the Applicant laboratory's Use Only*

Name: Ahmed Umair

Official Address: Vital Agri Nutrients (Private) Limited  
49 Km Multan Road Near Pakistan CNG Gagga Road, Bhai  
Pheru, Pakistan.  
Tel: 0312-4019516  
Email: umair@van.com.pk

Signed: .....

Position: Chief Executive Officer

Official Stamp: .....

Date: 23-12-24



*For the PNAC Use only*

Ref No:

Name : .....

Address: Pakistan National Accreditation Council  
1-Constitution Avenue, Opposite Prime Minister Office, G-5/2,  
Islamabad, Pakistan.  
Tel: 051-9206044, 9209507, 9205509  
Fax: 051-9209510, 051-9222312

Signed: ..... Position: Program Manager

Date: -----

**For PNAC use only**

Pakistan National Accreditation Council  
1-Constitution Avenue, Opposite Prime  
Minister Office, G-5/2, Islamabad,  
Pakistan.  
Tel: 051-9206044, 9209507, 9205509  
Fax: 051-9209510, 051-9222312